

Court No. - 21

Case :- WRIT - C No. - 4655 of 2023

Petitioner :- Ram Prakash Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Girja Shanker Mishra

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Sri Chetan Chatterjee, counsel for the respondent-Electricity department seeks three days' time to obtain instructions.

List as fresh on 15.2.2023.

(Syed Qamar Hasan Rizvi J.) (Manoj Kumar Gupta, J.)

Order Date :- 9.2.2023

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Hon'ble Syed Qamar Hasan Rizvi,J.

The petitioner has prayed for quashing of recovery certificate dated 29.07.2022 issued by respondent no.3 for recovery of electricity dues in a case of theft of electricity.

Sri Kavindra Dwivedi holding brief of Sri Chetan Chatterjee, learned counsel for the Electricity Department states that the impugned recovery certificate has been withdrawn and that fresh proceedings will be undertaken after following the procedure prescribed under the Electricity Supply Code, 2005.

Accordingly, the petition is disposed of with liberty to the respondent Electricity Department to pass a fresh order after following the procedure prescribed under the Electricity Supply Code, 2005.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.2.2023

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